CITY OF ALBANY
CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE "O"
AN ORDINANCE AUTHORIZING THE CITY COUNCIL TO ADOPT ZONING CHANGES IN THE SINGLE FAMILY RESIDENTIAL (R-1) ZONED AREAS WITHOUT MAJORITY NEIGHBORHOOD VOTER APPROVAL ESTABLISHED BY 1978 MEASURE D, AFTER FOLLOWING THE NOTICED PUBLIC HEARING AND ZONING ORDINANCE AMENDMENT PROCEDURES PRESCRIBED BY STATE LAW AND THE ALBANY MUNICIPAL CODE

In 1978, Albany voters approved Measure "D", a City initiative measure which, among other things, currently provides that any zoning changes to land in the City's single family residential (R-1) zoned areas only be permitted if at least fifty percent (50%) of the resident voters within three hundred (300) feet of the proposed change indicate their approval by signing a verified petition to that effect.

On June 1, 2026, the City Council voted to place Measure "O" on the November 3, 2026 General Municipal Election ballot. If approved by a majority of Albany voters, this Measure would amend the Albany Municipal Code to authorize the City to make zoning changes to land within the R-1 zoned areas from time to time, without majority neighborhood voter approval, after following noticed public hearing and zoning ordinance amendment procedures prescribed by State law and the Albany Municipal Code.

The stated purpose of this Measure is to allow greater flexibility for the City Council to respond to changing conditions and promote community goals to encourage additional housing availability and quality, as expressed in the adopted 2023-2031 General Plan Housing Element, the City Council's April 2025-2027 Strategic Plan and associated planning documents.

By placing Measure "O" on the ballot, the City complies with California Elections Code section 9217 which requires a majority of the Albany voters to approve the repeal or amendment of a previously voter-approved measure.

A "yes" vote on Measure "O" will authorize the City Council to make zoning changes within the R-1 zoned areas without majority neighborhood voter approval,

A "no" vote on Measure "O" will not authorize the City Council to make zoning changes within the R-1 zoned areas without majority neighborhood voter approval.

The above statement is an impartial analysis of Measure "O". If you desire a copy of the Measure, please call the City Clerk's Office at (510) 528-5710 and a copy will be mailed at no cost to you.

/s/ Malathy Subramanian
City Attorney